

STATE OF NEW YORK

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IN SENATE

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Introduced by Sens. CLEARE, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the environmental conservation law, in relation to prohibiting the sale and distribution of certain mercury-added lamps

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 27-2101 of the environmental conservation law is
2 amended by adding two new subdivisions 35 and 36 to read as follows:

3 35. "Compact fluorescent mercury-added lamp" means a compact, low-
4 pressure, mercury-containing, electric-discharge light source, whether
5 integrally ballasted or non-integrally ballasted and regardless of the
6 tube diameter or length and the shape or size of the lamp, in which a
7 fluorescent coating transforms a portion of the ultraviolet energy
8 generated by the mercury discharge into visible light and that:

9 (a) Has a single base or end cap of any type, including, but not
10 limited to, a screw base type, a bayonet base type or a two-pin or four-
11 pin base type; and

12 (b) Provides a light emission between a correlated color temperature
13 of seventeen hundred kelvin and twenty-four thousand kelvin and a Duv of
14 +0.024 and -0.024 in the international commission on illumination (CIE)
15 uniform color space (CAM02-UCS).

16 36. "Linear fluorescent mercury-added lamp" means a low-pressure,
17 mercury-containing, electric-discharge light source, regardless of the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 tube diameter and the shape of the lamp, in which a fluorescent coating
2 transforms a portion of the ultraviolet energy generated by the mercury
3 discharge into visible light and that:

4 (a) Has two bases or end caps of any type, including, but not limited
5 to, a one-pin or two-pin base type and a recessed double contact base
6 type;

7 (b) Provides a light emission between a correlated color temperature
8 of seventeen hundred kelvin and twenty-four thousand kelvin and a Duv of
9 +0.024 and -0.024 in the international commission on illumination (CIE)
10 uniform color space (CAM02-UCS); and

11 (c) Has a tube length of 0.5 feet to eight feet.

12 § 2. Section 27-2107 of the environmental conservation law is amended
13 by adding a new subdivision 13 to read as follows:

14 13. (a) On and after January first, two thousand twenty-nine, no
15 person shall sell, offer for sale, or distribute a compact fluorescent
16 mercury-added lamp or a linear fluorescent mercury-added lamp, except
17 that existing stock acquired prior to such date may be exhausted until
18 July first, two thousand twenty-nine.

19 (b) The prohibitions in this subdivision do not apply to:

20 (i) A lamp designed and marketed exclusively for image capture and
21 projection, including: photocopying; printing, directly or in preproc-
22 essing; lithography; film or video projection; or holography;

23 (ii) A lamp that has a high proportion of ultraviolet light emission
24 and is one of the following:

25 (1) a lamp with high ultraviolet content that has ultraviolet power
26 greater than two milliwatts per kilolumen;

27 (2) a lamp for germicidal use, such as the destruction of DNA, that
28 emits a peak radiation of approximately 253.7 nanometers;

29 (3) a lamp designed and marketed exclusively for disinfection or fly
30 trapping from which either the radiation power emitted between two
31 hundred fifty and three hundred fifteen nanometers represents at least
32 five percent of, or the radiation power emitted between three hundred
33 fifteen and four hundred nanometers represents at least twenty percent
34 of, the total radiation power emitted between two hundred fifty and
35 eight hundred nanometers;

36 (4) a lamp designed and marketed exclusively for the generation of
37 ozone where the primary purpose is to emit radiation at approximately
38 185.1 nanometers;

39 (5) a lamp designed and marketed exclusively for coral zooxanthellae
40 symbiosis from which the radiation power emitted between four hundred
41 and four hundred eighty nanometers represents at least forty percent of
42 the total radiation power emitted between two hundred fifty and eight
43 hundred nanometers; and

44 (6) a lamp designed and marketed exclusively for use in a sunlamp
45 product, as defined in 21 CFR 1040.20(b)(9);

46 (iii) A lamp designed and marketed exclusively for use in medical or
47 veterinary diagnosis or treatment or in a medical device;

48 (iv) A lamp designed and marketed exclusively for use in the manufac-
49 turing or quality control of pharmaceutical products;

50 (v) A lamp designed and marketed exclusively for spectroscopy and
51 photometric applications, such as UV-visible spectroscopy, molecular
52 spectroscopy, atomic absorption spectroscopy, nondispersive infrared
53 spectroscopy, Fourier transform infrared spectroscopy, medical analysis,
54 ellipsometry, layer thickness measurement, process monitoring, or envi-
55 ronmental monitoring;

- 1 (vi) A lamp used by academic and research institutions exclusively for
2 conducting research projects and experiments; or
3 (vii) A compact fluorescent mercury-added lamp used to replace a lamp
4 in a motor vehicle manufactured on or before January first, two thousand
5 twenty.

6 § 3. This act shall take effect on the thirtieth day after it shall
7 have become a law.